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16/10/14

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WILL

VIDYA WATI
E/TPE 11/4/2017

This Will is executed at New Delhi, on this 16th day of OCT, 2014.
By: MRS. VIDYA WATI wife of LATE SHRI HARI KISHAN SHARMA, resident of 1619/61, Uldhanpur, Navin Shahdara, Delhi, hereinafter called the "TESTATORIX".

WHEREAS I, the above named Testator, am the lawful owner of ENTIRE SHOP/PROPERTY BEARING NO. 33, area measuring 26 Sq. Yds., situated at Mirdard Road Market, New Delhi-110002, having acquired the same by virtue of Release Deed duly registered as Document No.1089, in additional Book No.1, Volume No.7269, on pages 85 to 88, dated 13.02.1992, entered in the office of Sub-Registrar, Sub-Distt.III, Asaf Ali Road, New Delhi, (hereinafter called the said PROPERTY).

I willingly make this Will that after my death my said property will become the property of my grand-son namely MR. SHALENDER GAUR son of MR. ASHOK KUMAR SHARMA, resident of 4-A, Prem Shanti Kunj, 2 Club Road, Civil Lines, Delhi-110054, absolutely and forever. He then shall get the same transferred, mutated and substituted in his own name in the records of the departments concerned on the basis of this Will or its certified true copy. He then shall use and enjoy the same as owner, like me. He then shall be fully competent/entitled to transfer the same by way of sale, gift, mortgage, lease or otherwise.



Contd...2...

LTI
Vidya Wati

[Signature]

No other person or legal heirs of mine shall have any rights, title, claim or interest in my above said property under any circumstances and if any objection to be raised by them regarding my is Will then the same shall be treated as null, void and in-effective.

That in case if said beneficiary dies earlier than me, then my above property will become the property of his legal heirs.

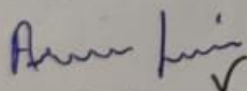
That the contents of this Will have been explained to me which I have understood and are correct.

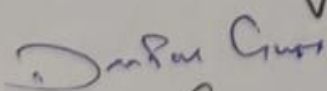
That I have made this Will voluntarily, without any outside pressure and in my full possession senses.

That this is my First and final Will in respect of the above said property only.

IN WITNESS WHEREOF I have signed this Will at New Delhi, on the date, month and year as first above written in the presence of the following witnesses.

WITNESSES:

1)  
Arun Jain
S/o Sh. Madan Lal
Mo 40 Triveni Apartment
A-6 Paschim Vihar, New Delhi
E/C JBAJ1066950

2)  
Deepak Gupta
S/o Sh. S.M. Gupta
Mo 7/4 Singh Sabha Rd
Shakti Nagar, Delhi.
Adhar - 4366 0021 5161


(VIDYA WATI)

TESTATOR



" AGREEMENT "

This agreement is made at Delhi on this 19th day of December, 1977, by Sh. Dalip Chand son of Sh. Harawari Mal R/o. shop No. 33, Mirdard Road, Delhi, at present F-4/9, Krishan Nagar, Delhi-51, hereinafter called "THE FIRST PARTY" (which expression shall mean and include his heirs, successors and assigns), in favour of (1) Smt. Shanti Devi W/o. Sh. H.C. Ahuja R/o. 1-B/23, Ramesh Nagar, New Delhi, and (2) Smt. Vidya Wati W/o. Sh. Hari Kishan Sharma R/o. 1619/61, Udhampur, New Shahdara, Delhi, hereinafter called "THE SECOND PARTY" (which expression shall mean and include their heirs, successors and assigns).



WHEREAS the first party is the absolute and sole owner/lessee of shop No. 33, alongwith the lease hold rights of the land measuring 26 sq.yds. situated at Mirdard Road, New Delhi, and the same was allotted to the first party by the Ministry of Rehabilitation, and the lease deed and conveyance deed of the same was granted to the first party on behalf of the President of India, which is registered as No. 6657, in addl. book No. I, Volume No. 1608 on pages 179 to 181 and registered on 16-9-66, and vide document No. 6658, in addl. book No. I, Volume No. 1608 on pages 182 to 183 and registered on 16-9-66, respectively.

AND WHEREAS the first party has agreed to sell and the second party has agreed to purchase the abovementioned shop No. 33, alongwith the lease hold rights of the land measuring 26 sq.yds. at Mirdard Road, New Delhi, for a sum of Rs. 40,000/- (Rs. forty thousand only) which is to be paid by the second party to the first party before the Sub-Registrar, New Delhi, through Bank Draft No. DD/6, 687006 dated 19-12-1977, on The Andhra Bank Ltd. Connaught Circus, New Delhi, and also through separate receipt to be registered, being the full and final price of the said shop, alongwith the lease hold rights of the same.

That the actual physical possession of the said shop has been delivered to the second party and the second party has taken possession thereof.

All the expenses of stamp paper, registration fee, etc. etc. shall be paid by the second party.

That any house tax, lease money, electric and water charges etc. etc. and any other dues and demands in respect of the said property upto the date hereof shall be paid by the first party and thereafter by the second party.

That the said shop is free from all kinds of encumbrances, such as sale, mortgage, gift, litigation, etc. etc. and if it is proved otherwise, then the first party shall be liable for the same.

That the first party has appointed Sh. Hari Kishan Sharma
Contd...P/2.

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करीब 15 दिनों

20/11/77

33/11/77

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402

इस प्रमाण

20-12-77

आम आधिकार प्र

के कार्यालय वे ओ/आ/आ/आ

हस्ताक्षर-मल्ल

निवासी

विष्वासि

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20-12-77

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गई दिल्ली

इस प्रमाण का निष्पादन ओ/आ/आ/आ

दलीप

आम आधिकार प्रदान करता

लक्ष्मण ने विषय, भाव प्र

माली की 10 दिनों के अंदर दखल देना

माली की 10 दिनों के अंदर

निवासी की 10 दिनों के अंदर

वे पंजीकृत कार्यालयों में 20 को हम उनके

कार्य में जानते हैं

विष्वासि

उप पंजीकृत

20-12-77

माली आम आधिकार

प्रदान करता व सीमान्त साथ

D.M.



Signature and

Behadur

To sell and transfer the said property, to execute the sale deed, to present the sale deed for registration at the office of the Competent Sub-Registrar, New Delhi, to admit its execution, to have the same registered, to receive consideration amount, to acknowledge the same, to effect mutations, to hand over possession and to do all other acts, deeds and things in connection thereto.

To appoint any other attorney and to delegate powers to him. This general power of attorney is irrevocable.

To submit and file any suit, plaint, revisions, reviews and appeal etc. etc. to verify the suits and cases, to compromise and compound the same, to engage any pleader, lawyer, and advocate, to submit all kinds of applications, petitions and affidavits, to get the affidavits attested, to represent me at all stages in all the Courts and to do all other acts, deeds and things in connection thereto.

IN WITNESS WHEREOF I have set my hand to this general
power of attorney at Delhi on this 19th of December, 1977.

1. D. M. Verma to Shri Ram Saran Das
780, Kunda Wala, Azimieri Gate,
Delhi-110006

EXECUTANT.

2. Lian Chand s/o Devi Chand.
3286 Ranjit Nagar New Delhi

Bahadur Singh
BAHADUR SINGH KAPUR
RETO. REGISTRATION CLERK
1964. K. P. DARYA GANJ. N. DEMSI

467. रजि. नं. 33 की...

INDIA NON JUDICIAL

₹1000

सत्यमेव जयते

भारत

एक हजार रुपये ONE THOUSAND RUPEES


$$\frac{49}{132}$$

1029

by
raj
71
10-11-71

3-11-5

By Smt. Shanti Devi w/o Sh. H.C. Ahuja R/o J-7/64
Rajouri Garden, New Delhi, hereinafter called the
'first party' and in favour of Smt. Vidya Wati w/o
Sh. Hari Kishan Sharma R/o 1619/61, Uldhanpur, Navin
Shahdra, Delhi, hereinafter called the 'Second party'.

Whereas the first & the second parties are the co-owners and co-lessee of Shop No. 33, with the lease hold rights of the land measuring 26 Sq.yds. under the said shop, situated at Mirdard Road, New Delhi. vide Regd. Sale Deed No. ~~Bx2452~~ 2548, in Addl. Book No.I, Vol. No.3959, on pages 195 to 199, Regd. on 29.6.78, in the office of S.R.Delhi. and read with Regd. Lease/Conveyance

ਪ੍ਰਾਚੀਨ ਸਾਹਿਤ

200 Rs.



-2-

Lease Deed No.6657, in Addl. Book No.I, Vol. No.1608, on pages 179 to 181, Regd. on 16.9.1966, & conveyance Deed No.6658, in Addl. Book No.I, Vol. No.1608, on pages 182 to 183, Regd. on 16.9.66, in the office of S.R.Delhi.

Whereas the first party wants to release her share of the said property with the lease hold rights of the land under the said property, unto the second party.

NOW THIS DEED WITNESSETH AS UNDER:

1. That the first party doth hereby release her share of the said property for a sum of Rs.45,000/-. (Rs.Forty five thousand only) unto the second party, which the first party have received from the second party, prior to the execution of this release deed, the first party doth hereby acknowledge the receipt of the same.

..3.

100Rs.



-3-

2. That the second party shall realise all the rents and profits of the said share of the said property after execution of this deed.

3. That the second party is already in possession of the said property, therefore, the first party shall not claim over the said property.

4. That the said property is free from all kinds of encumbrances, sale, mortgage, gift, liens, legal flaws, court injunctions, court decrees, attachments, whatsoever and if it is proved otherwise the first party shall be liable and responsible for the same.

२११ रु. ३११ रु.

...4.



-4-

5. That the second party is authorised to get the mutation effected in her own name by presenting this release deed in the office of M.C.Delhi/L&DO. Nirman Bhawan, New Delhi.

6. That all the expenses of this transaction shall be borne by the second party.

IN WITNESS WHEREOF, the first party has signed this Release Deed on the day, month and year first written above.

WITNESSES:

1. Himali Dabhi
ETC-27A 2nd floor
NEW DELHI

शान्ति देवी

'FIRST PARTY'

(Shanti Devi)

2. D.D. SHARMA
S/O Shri T.R. Sharma,
181A, Shiv Mandir Marg,
Mayapuri, Delhi-110013

3. PARVIN AMUJA
PARVIN AMUJA
S/O Late Sh. D. R. Amji
E-285 Naraina Vihar
New Delhi.

" W I L L "

This is the last WILL and testament of Sh. Dalip Chand son of Sh. Hardwar Mal R/o. shop No. 33, Mirdard Road, Delhi.

Life is short and uncertain. God knows when it may come to an end. At present I am in sound and disposing mind. I fully understand what is right and wrong. I wish to make the following WILL in order to avoid, litigation and unpleasantness after my demise.

I am the absolute and sole owner/lessee of shop No.33, alongwith the lease hold rights of the land measuring 26 sq.yds. situated at Mirdard Road, New Delhi, and the same was allotted to me by the Ministry of Rehabilitation, New Delhi, and the lease deed and also conveyance deed was granted to me on behalf of the President of India, which is registered as No. 6657, in addl. book No.I, Volume No. 1608 on pages 179 to 181 and registered on 16-9-66, and vide document No. 6658, in addl. book No. I, Volume No. 1608 on pages 182 to 183 and registered on 16-9-66, respectively.

I hereby devise and bequeath that after my death Smt. Shanti Devi W/o.Sh. H.O.Ahuja R/o. 1-B/23 Ramesh Nagar, New Delhi, and Smt. Vidya Wati W/o.Sh. Hari Kishan Sharma R/o. 1619/61, Udhman Pur, Navin Shahdara, Delhi, shall be the absolute and sole owners and lessees of the abovementioned shop No. 33, at Mirdard Road, New Delhi, alongwith the lease hold rights of the land attached thereto, like me, and they shall have full power to transfer the same. My heirs, successors and assigns shall have no claim, title and interests in the abovementioned property and any objection to be raised by them regarding this WILL shall be deemed as null, void and ineffective.

In the end I declare that I have made this WILL voluntarily without any outside pressure in full possession of all my faculties wits and senses.

Contd....P/2.

complete nutrition.

IN WITNESS WHEREOF I have set my hand to this WILL at
Delhi on this 19/12 day of December, 1977.

WITNESSES:-

1. D.M. Verman, S/o Sh. Ram Saran, 780, Kirti Nagar, New Delhi-6

TESTATOR.

2. Gian Chand S/o Devi Chand 3286 Rajni Nagar New Delhi

R.O. & A.C.

13.6

Signature

Signature
MAHARAJ SINGH KAPUR
NOT. REGISTRATION CLERK
1974, K.P., D.F., G.M.I., N. DELHI

Signature
बालदेव राय
बालदेव राय, कानपुरी नगर
1967, पिन. नं. 33 को.

3. Kishan Chand S/o
Pyara Lal 47 Minchard Road
New Delhi



" SURETY BOND "

This surety bond is made at Delhi on this 19th day of December, 1977, by Sh. Krishan Chand Mittal son of Shri Piaray Lal R/o. F-4/9, Krishan Nagar, Delhi-51, hereinafter called "THE SURETY" of the first party and in favour of (1) Smt. Shanti Devi W/o. Shri H.C. Ahuja R/o. 1-B/23, Ramesh Nagar, New Delhi, and (2) Smt. Vidya Wat W/o. Sh. Hari Kishan Sharma R/o. 1619/61, Uldhanpur, Navin Shahdara, Delhi, hereinafter called "THE PURCHASER" of the second party.

WHEREAS Shri Dalip Chand son of Sh. Hardwari Mal R/o. shop No.33, Mirdard Road, New Delhi, has sold his shop No.33, Mirdard Road, New Delhi, along with the lease hold rights of the land measuring 26 sq.yds. in favour of the second party, subject to the terms and conditions laid down in agreement executed to-day between the said Sh. Dali Chand and the second party.

AND the said Dalip Chand has delivered the possession of the said shop to the second party.

I Krishan Chand Mittal stand surety on behalf of the said Sh. Dalip Chand, that the said shop is free from all kinds of encumbrances, such as sale, mortgage, gift, litigation, disputes etc.etc. and the said Dalip Chand is bound to make payment of the house tax, lease money, damages, any penalty etc.etc. upto the date hereof to the concerned department and in case of failure to make payment of the same, the second party is compelled to make payment thereof, then the second surety and his property both moveable and immoveable shall be liable to make good the loss thus sustained by the second party in this connection and the second party also shall make payment of the said charges without any hitch to the second party and/or to the said department direct.

IN WITNESS WHEREOF the surety has set his hand to this surety bond at Delhi on the date mentioned above.

WITNESSES:-

1. D.M. Verma, S/o Sh. Ram Saran
780, Kundera Wala, Ajmer Gate.
Delhi-110006.

SURETY

2. Lian Chand S/o Dersi Chand
3286 Ranjit Nagar New Delhi

ATTESTED

NOTARY DELHI
20 DEC 1977





"GENERAL POWER OF ATTORNEY "

KNOW ALL MEN BY THESE PRESENTS THAT I, Dalip Chand son of Sh. Hardwari Mal R/o. shop No.33, Mirdard Road, Delhi, do hereby constitute, nominate and appoint Sh. Hari Kishan Sharma son of Shri Bansidhar R/o. 1619/61, Uldhanpur, Navin Shahdara, Delhi, as my true and lawful general attorney for me in my name and on my behalf to do and execute the following acts, deeds and things:-

WHEREAS I am the absolute and sole owner, lessee of shop No. 33, measuring 26 sq.yds. situated at Mirdard Road, Delhi, and the same was allotted to me by the Ministry of Rehabilitation, New Delhi and the lease deed of the same was granted to me on behalf of the President of India, which is registered as No. 6657, in addl. book No. I, Volume No. 1608 on pages 179 to 181 and registered on 16-9-66, and the conveyance deed was also granted to me vide registered as document No.6658, in addl. book No. I, Volume No. 1608 on pages 182 to 183 and registered on 16-9-66.

My said attorney is empowered to represent me at all stages in the office of Land & Development Office, New Delhi and also D.D.A. Delhi, and M.C.D.Delhi, to deposit any lease money, rent amounts, licence fee, ground rent, house tax and any other dues and demands in respect of the said shop in concerned department and also to deposit electric and water charges bills etc.etc. and to submit all kinds of application, petition and affidavit, etc. and to get the affidavits attested and to do all other acts, deeds and things in connection with the said shop.

To apply for grant of permission to sell in L&DO, Nirman Bhawan, New Delhi/D.D.A.Delhi, and also in the office of the Competent Authority, New Delhi, to submit all kinds of applications, forms,
Contd....P/2.

To sell and transfer the said property, to execute the sale deed, to present the sale deed for registration at the office of the Competent Sub-Registrar, New Delhi, to admit its execution, to have the same registered, to receive consideration amount, to acknowledge the same, to effect mutations, to hand over possession and to do all other acts, deeds and things in connection thereto.

To appoint any other attorney and to delegate powers to him. This general power of attorney is irrevocable.

To submit and file any suit, plaint, revisions, reviews and appeal etc. etc. to verify the suits and cases, to compromise and compound the same, to engage any pleader, lawyer, and advocate, to submit all kinds of applications, petitions and affidavits, to get the affidavits attested, to represent me at all stages in all the Courts and to do all other acts, deeds and things in connection thereto.

IN WITNESS WHEREOF I have set my hand to this general
power of attorney at Delhi on this 19th of December, 1977.

1. D. M. Verma to Shri Ram Saran Das
780, Kunda Wala, Azimieri Gate,
Delhi-110006

EXECUTANT.

2. Lian Chand s/o Devi Chand.
3286 Ranjit Nagar New Delhi

Bahadur Singh
BAHADUR SINGH KAPUR
RETO. REGISTRATION CLERK
1964. K. P. DARYA GANJ. N. DEMI

बोल्ड काटम. कशमां सट दिना-
467. रजि. नं. 33 की.

son of Shri Bansidhar, the nominee of the second party, who is fully entitled to get the executed sale deed and to have the same registered in favour of the second party or their nominee and also the first party is liable to execute the sale deed and get the same registered in favour of the second party ~~at~~ if necessary, with out receipt of any consideration amount.

In case the first party backs out from the said transaction, then the second party is fully entitled to get the said transaction enforced through court of law by specific performance of suit at the risk and costs of the first party.

This agreement is irrevocable and binding on the parties and their respective heirs.

That the second party is fully entitled to use the said shop in any manner from to-day like its owner and lessee, the first party, his heirs, successors and assigns shall have no claim, title and interests therein.

That all the previous documents and papers regarding this shop has been handed over to the second party.

IN WITNESS WHEREOF the parties have set their hands to this agreement at Delhi on the date mentioned above.

WITNESSES:-

1. D.M. Verma S/o Sh. Ram Saran
780, Kunda Walay
Ajmer Gate, Delhi-6

FIRST PARTY.

2. Giani Chand S/o Dersi Chand
3286 Ranjet Nagar
New Delhi

SECOND PARTY.



ATTESTED

NOTARY DELHI

20 DEC 1977



REGISTERED

Government of India
Ministry of Works & Housing
Office of the Land & Development Officer
Nirman Bhawan : New Delhi

NO.L&DO/CA/27(960)/77

Dated the 15 March, 78.

To

✓
Shri Hari Kishan Sharma,
attorney of Shri Dalip Chand,
Shop No. 33, Mirdard Road,
New Delhi

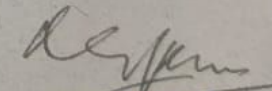
Sub: Grant of permission for sale under Section 27
of the Urban Land (Ceiling & Regulation) Act,
1976 in respect of ~~Property~~ Shop No. 33, Mirdard
Road, New Delhi.

Dear Sir,

Please refer to your application under Section
27(2) of the Urban Land (Ceiling & Regulation) Act, 1976
received in this office on 13-2-78.

The permission to sell the aforesaid property in
favour of Smt. Shanti Devi w/o Shri H.C. Ahuja & Smt. Vidya
Wanti w/o Shri Hari Kishan Sharma as sought by you, is
hereby granted.

Yours faithfully,


(N.K. GANKHANE)
COMPETENT AUTHORITY
U/S 2 (d) of the Urban Land
(Ceiling & Regulation) Act 1976

Copy to: Land & Development Office (PSV) for information.

sell
(N.K. GANKHANE)
COMPETENT AUTHORITY
U/S 2 (d) of the Urban Land
(Ceiling & Regulation) Act 1976

APPLICATION FOR DEPOSIT TO ISSUE OF CERTIFIED COPY
OF DOCUMENTS

TO
S. R. REGISTRAR DELHI

Sr. K. K. K. III



We have to deposit the amount of Rs. _____ in your office as
per following details:

Property Description: Plotting No 33, PIER VARD ROAD, New Delhi
Sum of Deposit: Rs. 2548

Enclosed are:

In favour of:

2. Amount of deposit: 2548

3. Amount: 3959

4. Page no. 195 to 199

Book no. 1

5. Date of Registration: 29/6/1978

FOR THE PURPOSE OF DEPOSIT TO THE REGISTRAR, NEW DELHI, I REQUESTED TO ACCORD THE DEPOSIT TO THE REGISTRAR, NEW DELHI, FOR THE PURPOSE OF DEPOSITING THE DEPOSIT TO THE REGISTRAR, NEW DELHI.

Yours truly,

K. K. K.
ADVOCATE
96, LAWYERS CHAMBERS
SUPREME COURT BUILDING

99/1055 3262

820391757

Doc. No. 2548, dated 29/6/1978, New Delhi.
The Registrar, New Delhi, is requested to issue the certified copy of the documents deposited in your office.

K. K. K.
ADVOCATE
96, LAWYERS CHAMBERS
SUPREME COURT BUILDING
NEW DELHI



सत्यमेव जयते

INDIA NON JUDICIAL

Government of National Capital Territory of Delhi

e-Stamp

Certificate No.	: IN-DL02583286943198Q
Certificate Issued Date	: 13-Nov-2018 03:45 PM
Account Reference	: IMPACC (IV)/ dl724403/ DELHI/ DL-DLH
Unique Doc. Reference	: SUBIN-DL72440310187990836726Q
Purchased by	: VANDANA SHARMA ADVOCATE
Description of Document	: Article 25 Additional Copy of document
Property Description	: Not Applicable
Consideration Price (Rs.)	: 0 (Zero)
First Party	: VANDANA SHARMA ADVOCATE
Second Party	: Not Applicable
Stamp Duty Paid By	: VANDANA SHARMA ADVOCATE
Stamp Duty Amount(Rs.)	: 10 (Ten only)



Please write or type below this line.

Registration No. 6657 Addl. Book No. I
Volume No. 1608 on Pages 179 to 181
Dated: 16/09 day of 1966

5011
Sub-Registrar-II
New Delhi

Checked & verified as per available Records

Copy No. 9210
Tr No. 5007/G R120
Date of Payment 13/11/18
Date when copy ready
Date when copy ready
Remarks: leaf dead

NSH
Sub-Registrar-III
New Delhi

Statutory Alert:

1. The authenticity of this Stamp Certificate should be verified at "www.shdilestamp.com". Any discrepancy in the details on this Certificate and as available on the website renders it invalid.
2. The onus of checking the legitimacy is on the users of the certificate.
3. In case of any discrepancy please inform the Competent Authority.

APPENDIX XI

[Rule 40 (3)]

LEASE DEED

TRUE COPY

(Applicable to Government owned Sites in the Delhi State revised terms)

THIS LEASE made this 21st day of July of the year One thousand nine hundred and fifty 51 between the President of India (hereinafter called the Lessor which expression shall, unless the context requires another and different meaning, include his successors and assigns) of the one part and Sh. Dalip Chaudhary, Sh. Hardan Mal, Sh. P. N. 33, P. N. 33, P. N. 33 (hereinafter called the Lessee" which expression shall, unless the context requires another different meaning, to mean and include the said Sh. Dalip Chaudhary his heirs, executors administrators, representatives and permitted assigns) of the other part:

WHEREAS the Lessor has agreed to demise to the Lessee the land described in the Schedule hereunder written upon the terms and conditions hereinafter appearing and contained;

NOW, this Indenture Witnesseth that in consideration of the premium of Rs. 936.00 (Nine hundred and thirty six rupees only) paid before the execution of these presents the receipt whereof the Lessor hereby acknowledges and the rent hereinafter reserved and of the covenants by the Lessee hereinafter contained the Lessor doth demise unto the Lessee all that piece of land containing by admeasurement 26.52 gaj or thereabouts situated in Plot No. 33 in Maroland Road Delhi which said plot of land is more particularly described in the Schedule hereunder written and with the boundaries thereof has for greater clearness been delineated on the plan annexed to these presents and thereon coloured red, together with all rights, easements and appurtenances to the same belonging save and except all mines and mineral products, buried treasure, coal, petroleum, oil and quarries whatsoever in/under or within the said land with liberty for the Lessor and his lessees, licencees, agents and workmen and all other persons acting on his behalf to dig, search for, obtain and carry away the same on making reasonable compensation to the Lessee on account of any disturbance or damage that may be caused thereby to the surface of the said land or any building standing thereon and that such compensation shall in case of dispute be determined by an officer appointed by the Lessor for this purpose, as nearly as may be, in accordance with the provisions of the Land Acquisition Acts or Regulations for the time being in force, whose decision thereon shall be final.

TO HOLD THE said land unto the Lessee for the term of 99 (Ninety-nine) years commencing from 1.1.55 yielding and paying therefor the yearly ground rent of Rs. 1.00 at the rate of Re. 1 per annum per hundred square yards or fraction thereof at the Imperial Bank of India, New Delhi or at such other place as may be notified by the Lessor for this purpose from time to time.

(a) Rent will not be subject to revision except as provided for in (d) hereof.

(b) The Lessee shall before any assignment or transfer of the said premises hereby demised or any part thereof obtain from the Lessor approval in writing of the said assignment or transfer and all such assignees and transferees and the heirs of the Lessee shall be bound by all the covenants and conditions herein contained and be answerable in all respects therefor.

(c) The Lessee can transfer the land after obtaining the permission of the Lessor aforesaid and the Lessor will not share any unearned increment in the value of the land (being the difference in the premium paid by him to the Lessor and the market value of the land then prevailing) for permitting such transfer. The Lessor will, however, be entitled to claim and recover the unearned increment in the value of the land in the event of any subsequent transfer of the land by a transferee the amount so to be recovered being 50% of the unearned increment in the value of the land.

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In the case of any subsequent transfers the Lessor shall have the pre-emptive right to purchase the premises as hereby demised and all the buildings and structures standing thereon, after paying 50% of the unearned increment as aforesaid.

(d) The Lessor shall also have the right to revise the annual ground rent at the time of any sale or transfer of the premises hereby demised subsequent to the first transfer or assignment made. The revised ground rent payable in such case shall be at the rate of 2½% of the value of the land at the time of such transfer:

Provided further that in the case of any transfer or assignment subsequent to the first transfer of the premises the Lessor shall also have the right to revise the ground rent hereby reserved on the 1st day of January of the year following the year in which thirty years from the date of such subsequent transfer or assignment shall be complete and thereafter at the end of each successive period of less than thirty years; provided that the increase in the rent fixed at each enhancement shall not at each such time exceed one half of the increase in the letting value of the site without buildings on the date on which the enhancement is made and such letting value shall be assessed by the Collector or Deputy Commissioner of Delhi: PROVIDED always that any such assessment of letting value for the purpose of this provision shall be subject to the same right on the part of the Lessee of appeal against the orders of the said Collector or Deputy Commissioner and within such time as if the same were made by a Revenue Officer within the meaning of section 50 of the Punjab Land Revenue Act 1887 (Act XVII of 1887) and the proceedings for or in relation to any such appeal shall be in all respects governed by the provisions of the said Act in the same manner as if the same had been made thereunder.

(e) The ground rent will be payable in advance in half yearly instalments on the 15th January and 15th July each year. The ground rent shall be payable for the full half year for the period from the date of purchase of the grant of a lease of the site on the 15th January or 15th July next following the date of purchase and shall be paid by the purchaser at once at the time of such purchase.

I. The Lessee doth to the intent that the burden of the covenants may run with the said land and may bind any permitted assignee thereof hereby covenant with the Lessor as follows:—

(i) to pay the rent on the days and in the manner hereinbefore appointed for payment thereof and also to pay all taxes, rates and assessments that now are or may hereafter during the said term be imposed upon the said land or building erected thereon or upon the Lessor or the Lessee, his permitted sub-lessee or assignee in respect thereof, under any enactment for the time being in force;

(ii) within the period of 24 calendar months next after the date of these presents the..... from the..... day of..... 195..... Lessee shall and will at his own expense erect and finish fit for habitation on the site hereby demised one building *single storeyed containing one residential flat or *double storeyed consisting of one or two residential flats in all with a barsati on top, as may be approved by the Chief Commissioner, Delhi or such officer or body as the Lessor or the Chief Commissioner, Delhi, may authorise in this behalf together with all necessary out-houses, sewers, drains and other appurtenances in accordance with a plan or plans to be approved of in writing by the Chief Commissioner, Delhi or such officer or body as the Lessor or the Chief Commissioner, Delhi may authorise in this behalf. And all the drains and sewers for the said premises shall be constructed, laid and connected to the satisfaction of the Chief Commissioner and the appropriate Municipal authority and in such position as shall be directed by the said Chief Commissioner or as may be required by the said Municipal authority.

(iii) before the buildings on the said site are occupied connect the same with the gravitating sewers and to lay on water to the said buildings in the manner directed by an officer appointed, by the Lessor in this behalf and to employ a plumber duly approved by the said officer to make and do all such connections and works; provided that when the sewage or water systems are not extended to the said house/quarter at the time the said buildings are occupied, the Lessee shall, within 30 days from the extension of the sewage and water systems to the said house/quarter, connect gravitating sewers and lay on water in the manner and according to the instructions and through the agency above mentioned;

*Score out which is not applicable.

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- (b) to maintain the premises and all buildings thereon in sanitary condition according to the directions of the officer appointed by the Lessor;
- (v) not to erect more than one building *single storeyed containing one residential flat or *double storeyed consisting of one or two residential flats in all, with a barsati on top, as may be approved by the Chief Commissioner, Delhi or such officer or body as the Lessor or the Chief Commissioner, Delhi may authorise in this behalf, except such outhouses and servant quarters as may be approved by the Lessor. Any servants quarters constructed by the Lessee shall not without any written permission of the Chief Commissioner, Delhi, be occupied or permitted to be occupied otherwise than by the bona-fide servants of the persons occupying the main building.
- (vi) not without the written consent of the Chief Commissioner, Delhi, to carry on or permit to be carried on, on the said land and buildings erected thereon during the said lease any trade or business whatsoever or use the same or permit the same to be used for any purpose other than that of a *single storeyed building consisting of one residential flat or a *double storeyed building consisting of one or two residential flats in all, with a barsati on a top, as may be approved for the locality or as provided in the building already erected on the said land;
- (vii) not to sub-divide the said land or building erected thereon or any part thereof without the prior permission of the Lessor in writing;
- (viii) not to do or permit anything in or upon the demised premises or any part thereof which may be or become a nuisance, annoyance or cause damage to occupiers of other property in the neighbourhood;
- (ix) to register all changes in the possession of the whole of the said land or of the building thereon whether by transfer, succession or otherwise in the register kept in the office of the local authority having jurisdiction in the area in which the said land is situated (the expression local authority shall include the Delhi Improvement Trust) for this purpose within one calendar month from the respective dates of such changes (and if such changes are registered in the local sub-registry under the Indian Registration Act, 1908, within one calendar month from the date of registration in such sub-registry) and if the Lessee shall without sufficient cause neglect to register such changes in the manner aforesaid with the Lands Officer appointed by the local authority for this purpose, the Lessor may impose on him for each such case of neglect a penalty not exceeding Rs. 100 and the Lessor may in addition to the other remedies available to him under these presents enforce the payment of such penalties in the same manner as in the case of arrears of land revenue;
- (x) That all persons acting under the orders of Lessor shall be at liberty at all reasonable time in the day time during the said term to enter upon the said land or any building that may be erected thereon for any purpose connected with the lease;
- (xi) The lessee and his successors and assignees shall on the determination of the lease on the expiry of the period of 99 years yield up the demised premises with all buildings erected thereon and landlords fixtures thereto, provided that the Lessor shall pay to the Lessee the value of the said buildings and fixtures at the date of determination of the tenancy, such value to be determined in the absence of agreement, by a sole Arbitrator agreed upon by both the parties or in the absence of such agreement by two arbitrators, one to be appointed by each party. The provisions of the Arbitration Act, 1940, and any statutory modification thereof shall apply to any such arbitration. The Lessor may however renew the lease of the land after the expiry of 99 years on such terms and conditions as considered necessary by the Lessor;
- (xii) If during the period of the lease the premises are required for a public purpose or for any administrative purpose by the Lessor the Lessor shall at the expiry of a notice of fifteen days to the effect that the said premises are required for such purpose to be served upon the Lessee by an officer appointed by the Lessor in this behalf, be at liberty to take possession of the land together with all buildings, structures and appurtenances. The Lessee shall be

entitled to compensation in respect of the land, buildings and structures. The compensation payable under this clause shall, in case of dispute, be determined by the Lessor or by an officer as he may appoint for the purpose, as nearly as may be, in accordance with the provisions of the Land Acquisition Act or regulations for the time being in force relating to the same and the decision of the Lessor or such officer shall be final and conclusive;

(xiv) Any sum of money due to or claimable by the Lessor in respect of the land hereby demised shall be recoverable by the Lessor as an arrear of land revenue under the provisions of the Punjab Land Revenue Act, 1887 (XVII of 1887), and any amending Act for the time being in force.

II. If the yearly rent hereby reserved or any part thereof shall at any time be in arrear unpaid for one calendar month next after any of the said days whereon the same shall have become due whether the same shall have been demanded or not, or if there shall have been in the opinion of the Lessor or the Chief Commissioner of Delhi whose decision shall be final, any breach by the Lessee or by any person claiming through or under him of any of the covenants or conditions hereinbefore contained and on his part to be observed or performed then and in any such case it shall be lawful for the Lessor or any person or persons duly authorised by him notwithstanding the waiver of any previous cause or right of re-entry upon any part of the premises hereby demised or of the building thereon in the name of the whole to re-enter and thereupon this demise and everything here in contained shall cease and determine and the Lessee shall not be entitled to any compensation whatsoever, nor to the return of any premium paid by him.

III. No forfeiture or re-entry shall be effected except as herein provided, without the permission of the Chief Commissioner of Delhi and Chief Commissioner shall not permit such forfeiture or re-entry until the Lessor has served on the Lessee a notice in writing—

(a) Specifying the particular breach complained of;

(b) If the breach is capable of remedy, requiring the Lessee to remedy the breach,

and the Lessee fails within a reasonable time from the date of service of the notice to remedy the breach if it is capable of remedy; and in the event of forfeiture or re-entry the Chief Commissioner may in his discretion relieve against forfeiture on such terms and conditions as he thinks proper.

Nothing in this clause shall apply to entry for breach of covenant against unauthorised sub-division.

In WITNESS WHEREOF the President of India has caused *Managing Officer*.....on his behalf to set his hand hereunto and the Lessee has hereunto set his hand the day and the year first above written.

The schedule above referred to.

Signed by.....
for and on behalf of President of India in the presence of.....

Signed by.....
the Lessee in the presence of.....

1. *Maharaja Lal Singh*
2.



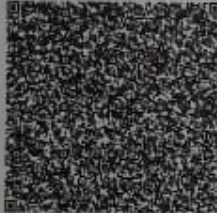
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INDIA NON JUDICIAL

Government of National Capital Territory of Delhi

e-Stamp

Certificate No.	: IN-DL02581916646121Q
Certificate Issued Date	: 13-Nov-2018 03:43 PM
Account Reference	: IMPACC (IV)/ dl724403/ DELHI/ DL-DLH
Unique Doc. Reference	: SUBIN-DL72440310189968540095Q
Purchased by	: VANDANA SHARMA ADVOCATE
Description of Document	: Article 25 Additional Copy of document
Property Description	: Not Applicable
Consideration Price (Rs.)	: 0 (Zero)
First Party	: VANDANA SHARMA ADVOCATE
Second Party	: Not Applicable
Stamp Duty Paid By	: VANDANA SHARMA ADVOCATE
Stamp Duty Amount(Rs.)	: 10 (Ten only)



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Volume No. 1608 on Pages 182 to 183
Dated 16/09/19 day of 1966
Sub-Registrar-I
New Delhi

Copy No. 9211
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Date of Payment 13/12/18
Date when copy ready
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Remarks if any C. head

Checked & verified as per available Records

Sub-Registrar-III
New Delhi

Statutory Alert:

1. The authenticity of this Stamp Certificate should be verified at "www.shcstamp.com". Any discrepancy in the details on this Certificate and as available on the website renders it invalid.
2. The onus of checking the legitimacy is on the users of the certificate.
3. In case of any discrepancy please inform the Competent Authority.

APPENDIX XXV

DEED OF CONVEYANCE OF BUILDING CONSTRUCTED ON LEASE-HOLD SITES SOLD OTHERWISE THAN BY PUBLIC AUCTION.

[Rule 91(8)]

(Government built and evacuee properties in the Delhi State built on leasehold sites)

THIS INDENTURE made the 8th day of July 1966 between the President of India (hereinafter called "the Vendor"), on the one part and 33 Mirdad Road, Delhi (hereinafter called "the Purchaser") on the other part.

WHEREAS the site and the building hereinafter described is owned by the vendor in full proprietary right:

AND WHEREAS the purchaser has declared that he is a displaced person,*

AND WHEREAS the purchaser has taken on lease the said site by lease deed dated 8th July 1966

AND WHEREAS the vendor has agreed to sell and the purchaser has agreed to buy the building fully described in Schedule I hereunder written (hereinafter referred to as the said property) at or for the price of Rs. 2312.00 (Rs. Two thousand three hundred twelve only)

*AND WHEREAS section 8 of the Displaced Persons (Compensation and Rehabilitation) Act, 1954 (hereinafter referred to as the "Said Act") provides that a displaced person shall be paid out of the compensation pool the amount of net compensation determined under sub-section (3) of section 7 of the Said Act as being payable to him and subject to the rules that may be made under the Said Act, the Settlement Commissioner or any other officer or authority authorised by the Chief Settlement Commissioner in this behalf may make such payment in any one of the forms mentioned therein or partly in one and partly in any other of such forms;

AND WHEREAS the purchaser has paid Cost the sum of Rs. 2312.00 being the purchase money on or before the execution of these presents (the receipt whereof the vendor doth hereby admit and acknowledge and from the same doth hereby release the Purchaser) out of which the sum of Rs. 2312.00 has been paid in cash and the balance of Rs. 2312.00 by adjustment against the compensation payable under the Said Act to the purchaser and his associates whose names are given in Schedule II hereunder written and which said associates have agreed to the said property being granted, released conveyed and assured unto the Purchaser*.

NOW this indenture witnesseth that for the purpose of carrying into effect the said sale and in consideration of the covenants of the purchaser hereinafter contained and the payment by the purchaser of the said sum of Rs. 2312.00 in the manner aforesaid the vendor doth hereby grant, convey, release and assure unto the purchaser the building described in Schedule I hereunder written.

TO HAVE AND TO HOLD THE same unto and to the use of the purchaser subject to the excepted reservations, conditions and covenants hereinafter contained and each of them that is to say —

- (1) The purchaser shall enjoy the right of possession and enjoyment so long as he conforms to the terms and conditions of the sale.
- (2) The purchaser shall pay all general and local taxes, rates and cesses now imposed or assessed or which may at any time hereafter be imposed or assessed on the said property by the vendor or by any other competent authority.
- (3) The purchaser shall not make any alterations and/or additions to the building either externally or internally without first obtaining the permission of the local authority in writing, and also if called upon by the said authority, the purchaser shall submit plans, sections, elevations and specifications for the additions and/or alterations to the building, in duplicate, and shall not start the work of constructions unless and until the approval of the said authority has been obtained in writing.
- (4) The purchaser shall maintain the said property in a sanitary condition according to the directions of the local authority concerned.

* To be omitted if the purchaser is a non-displaced person.
* Appendix XI, XII or XIII as the case may be in the case of Government built properties. In the case of evacuee properties, terms of the original lease will apply.

- (5) The purchaser shall not use the said property for any purpose other than the purpose of Business without the previous consent in writing of the vendor or an officer appointed by him in this behalf.
- (6) The vendor may by his officers and servants at all reasonable times and in a reasonable manner after 24 hours' notice in writing enter in and upon any part of the said property for the purpose of ascertaining that the purchaser has duly performed and observed the covenants and conditions to be performed and observed by him under these presents.
- (7) The vendor shall have full right, power and authority at all times to do, through officers, or servants, all acts and things which may be necessary or expedient for the purpose of enforcing compliance with all or any of the terms, conditions and reservations herein contained and to recover from the purchaser as a first charge upon the said property the cost of doing all or any such acts and things and all costs incurred in connection therewith or in any way relating thereto.
- (8) In the event of the breach or non-observance by the purchaser of any of the covenants herein on his part to be observed then in any such case notwithstanding the waiver of any previous cause or right for re-entry, it shall be lawful for the vendor to enter into and upon the said property or any part thereof and to re-possess, retain and enjoy the same as of his former estate and the purchaser shall not be entitled to a refund of the purchase money or any part thereof or to any compensation whatsoever on account of such resumption.
- (9) If and so long as the purchaser shall fully perform and comply with and shall continue to so perform and comply with each and all the terms and conditions herein made and provided but not otherwise the vendor will secure the purchaser full and peaceful enjoyment of the rights and privileges herein and hereby conveyed and assured.
- (10) It is hereby agreed and declared that this conveyance shall in all respects be subject to the terms and covenants contained in the lease* deed of the site hereinbefore referred to.
- (11) In the event of any dispute of difference at any time arising between the vendor and the purchaser as to the true intent and meaning of these presents and of each and every provision thereof, the property and rights hereby reserved or any of them or in any manner incidental or relating thereto, the said dispute or difference shall be referred to the Chief Commissioner, Delhi, or his nominees whose decision thereon shall be final and binding on the parties hereto.

* If either party shall neglect or refuse for the space of thirty days after request in writing by the other party so to refer the matter, then the other party may himself refer the matter for the decision of Chief Commissioner, Delhi, as aforesaid who may proceed as though the reference were by both parties and his decision thereon shall be final and binding on both parties.

And it is hereby agreed and declared that unless different meaning shall appear from the context.

(a) the expression "Vendor" used in these presents shall include the President of India, the Government of India, the Chief Commissioner, Delhi, and in relation to any matter or anything contained in or arising out of these presents, every person duly authorised to act or to represent the Government of India in respect of such matter or thing ;

(b) the expression "purchaser" used in these presents shall include, in addition to the said Sh. Dalip Chand his lawful heirs, successors, representatives, assigns, transferees, lessees and any person or persons in occupation of the said property.

IN WITNESS WHEREOF the parties hereto have hereto set their hands the day and year first above-written.

SCHEDULE I ABOVE REFERRED TO

ALL THAT Single storeyed brick-built house or messuage consisting of one at Shop No 33 Murlidhar Road Delhi with fixtures and fittings situate the site being held on lease by an indenture of lease dated _____ and more particularly described in the Schedule thereunder written TOGETHER WITH all buildings, privileges, easements and appurtenances whatsoever to the said house or messuage belonging or usually held or enjoyed therewith. OR HOWSOEVER OTHERWISE the said house or messuage is or heretofore was called or known or should be described or distinguished.

*To be omitted if the purchaser is a non-displaced person.

*SCHEDULE II

Signed by the _____
 for and on behalf of the President of India
 In the presence of—

Signature _____

Occupation _____

Address _____

Signature _____

Occupation _____

Address _____

Signed by the said _____
 at _____

In the presence of

Signature _____

Occupation _____

Address _____

Signature _____

Occupation _____

Address _____

*To be omitted if the purchaser is a non-displaced person.

TRUE COPY

Received
 Port Males
 5-7-56

Recd. Males
 Office of the Fed